ARIZONA SUPREME COURT

No. CV-25-0213-PR

JANE DOE I, JANE DOE II, and JOHN DOE, by and through conservator, Fleming and Curtis PLC,
Plaintiffs/Appellants,

v.

THE CORPORATION OF THE PRESIDENT OF THE CHURCH OF JESUS CHRIST OF LATTER-DAY SAINTS, a Utah corporation sole; et. al.,
Defendants/Appellees.

Court of Appeals Division Two No. 2 CA-CV 2023-0293
Cochise County Superior Court No. S0200CV202000599

MOTION FOR RECONSIDERATION

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The Doe minor children, through counsel, pursuant to Rule 22, Ariz.R.Civ. App.Pro., submits the points of law and fact that we believe that the Appellate Court determined erroneously.

I. INTRODUCTION

It is a dangerous "public policy" to allow and encourage powerful religious organizations to unilaterally declare that all concealed child sexual abuse is privileged and "confidential" retroactively. The "public policy" of encouraging child abuse to be concealed was unequivocally and affirmatively created by the Arizona Supreme Court and not by the Arizona legislature.

The purposeful omission of critical facts in this Court's Opinion, the skewed interpretation of A.R.S. §13-3620(A), and the novel assertion that the First Amendment compels a neutral child abuse reporting statute to be fundamentally altered will lead to unnecessary suffering by innocent children. The result is painfully ironic because the Opinion utilizes a statute designed to protect children as the tool to forsake them.

The Arizona legislature created §13-3620 to protect children by requiring clergy and others to report child abuse unless a solid, recognized privilege existed to protect genuinely confidential communications. The Opinion eviscerates the protections provided by mandatory reporting statute. In its place, the Court creates an obvious incentive for religious organizations of all stripes to conceal child abuse – all under the ironic banner of religious freedom.

After delegating the authority to religious organizations to apply and negate a neutral state statute regarding confidential communications, the Court does not consider the obvious "waiver" of confidentiality that occurred by Clergy itself. The end result is absolute immunity from reporting - - a result, we contend, that cannot be supported by statutory interpretation nor the First Amendment.

II. FACTUAL OMISSIONS

A. The Confession to Leizza Adams, A Mandatory Reporter

At the inception of this case in 2010-11, Paul Adams repeated his "confession" to his wife, Leizza Adams, in Bishop Herrod's presence, in a manner that no reasonable person would believe was "confidential." To quote Leizza Adams: [H]e [Herrod] told the fat head [Paul Adams] to tell me what he had told him. . .the bishop." [ROA433, ep9] Leizza Adams testified that she did not believe it was confidential. Bishop Herrod told Leizza Adams, in front of Paul Adams, to report the confession to the police "to protect her children." [Herrod deposition, ep 33-34] Obviously, Paul Adams could not have considered the meeting to be confidential, neither did Leizza Adams.

An obvious dispute of fact existed. This Court acknowledged that it is required to view "the evidence in light most favorable to the party against whom summary judgment was entered." Opinion at ¶ 12. The Opinion doesn't even discuss the disputed "facts", let alone favor the evidence presented by the Doe minor children.

B. The same problem exists with the disciplinary proceedings before the Church. The Court doesn't mention that at least 35 people learned of the abuse, yet failed to report. We understand that the Court upheld the assertion that the Council was all "clergy"; but all of the constituents were never even revealed. Why hide them? Even worse, the Court ignored the fact that Leizza Adams attended the disciplinary proceedings as well. She was unequivocally not "clergy", but an independent, mandatory reporter. At the least, "confidentiality" was again breached; yet not even discussed by this Court. It is problematic to uphold an "exemption" for all disciplinary proceedings without revealing what took place – particularly when we all know that it included another mandatory reporter. The Opinion is flawed as a result.

C. The Court did not reveal nor discuss the "fact" that Bishop Herrod breached confidentiality by repeating the "confession" to Agent Andrews, Homeland Security. After litigation took place, Bishop Herrod considered Paul's confession to be confidential. Yet, another dispute of fact existed and it was not considered in favor of the Doe minor children. Instead, the Opinion encourages post-litigation revisionist views of prior communication. How could the Court not consider "waiver" of confidentiality by Clergy once it delegated the privileged "exemption" to the Clergy? It is a dangerous policy.

D. The "confidential" communication was waived. If the Clergy holds the privilege/ exemption rather than the penitent, then what about waiver? Bishop Herrod disclosed the content of Paul's confession to a law enforcement officer - an obvious waiver of confidentiality. If waiver occurred, confidentiality is lost. The Opinion doesn't discuss waiver; but it should. If waiver doesn't apply, then the Church has essentially been given absolute, judicially created immunity. The common law doctrine of implied waiver applies when any course of conduct inconsistent with confidentiality occurs. *State v. Archibeque*, 221 P.2d 1045, 1050 (App. 2009).

III. MISTAKES OF LAW

A. Genuine "Fundamental" Issues Missed

The Opinion asserts that the "parties' fundamental dispute" was whether a "factfinder" may decide application of "religious doctrine" because of failure to report minor sex abuse. Op. at ¶ 21. Unfortunately, that was NOT any issue; let alone the "fundamental issue."

> The issue is whether Paul Adams' communication to Bishop Herrod and Leizza Adams was [genuinely] confidential, if it was not, §13-3620(A) imposes an affirmative duty on Bishop Herrod to report, which he did not.
>
> Supp. Br. of Doe minor children at p. 13.

B. A.R.S. §13-3620(A) Was Never Objectively Analyzed nor Interpreted

The Opinion doesn't set forth the actual wording of §13-3620(A) and its summary of the statute skews its real meaning. Op. at ¶ 13. In other cases, this Court has employed tools of statutory construction to arrive at a statute's plain meaning and to give effect to the legislature's intent. *Physicians Group v. Navarro*, 240 Ariz. 193, 195 (2016). Not in this case.

Recent cases in 2026 by this very Court undermine its treatment of the "exemption" in §13-3620, which actually partially abrogates the clergy-penitent privilege. A finding of a *confidential* communication is central to both the exemption in §13-3620(A) and any privilege.

> We therefore hold that because A.R. cannot establish that a confidential relationship existed, any information received by M.G. from A.R. is not privileged…

In re MH2023-004502, 261 Ariz. 342, ¶30 (2026). If a *prima facie* showing is not made for each communication, proof of confidentiality does not shift to the party contesting a privilege (or mirror image exemption). *State ex. rel. Adel v. Adelman*, 252 Ariz. 356 at ¶ 12 -13 (2022). An avowal is inadequate in any circumstance - - yet it is the entire predicate for the privilege/ emption in this case.

"The confidentiality of communications between lawyer and client is perhaps the most deeply cherished and protected privilege in American law." *Gelvin v. Parker*, 2026 WL2075523, ¶ 13 (Ariz. 2026). This Court stressed that the protected communication must be made in confidence and must be treated as confidential. *Id*, ¶ 14. The Court applied a "functional approach", which examines "the nature, purpose and context within which the communication occurs." *Id*, ¶ 17. The Court also rejected the "parties' subjective expectations" to define the privilege, instead finding that a judicial determination of objectiveness is required. *Id* ¶ 19. "Because the third party was neither seeking legal advice nor was an actual client, the attorney-

client privilege does not apply." *Id* ¶ 25. Finally, the burden is on the party seeking to protect the communication. *Id* ¶ 26.

1. In reality, §13-3620(A) partially abrogates the clergy-penitent privilege because it allows a member of the clergy to report child abuse even if it was learned in a confidential communication – something completely missed in the Opinion.

2. The Opinion asserts repeatedly that the penitent "privilege" and the "exemption" in §13-3620 are different; but §13-3620(A) repeats the elements of the "privilege", except that it expressly requires "confidentiality" while the privilege statutes don't mention that common law element. Surprisingly, the Opinion then does away with "confidentiality" as a true element. Instead, the Opinion affirmatively delegates the enforcement (or lack thereof) to the Church.

3. The Opinion focuses attention on A.R.S. §13-3620(N) which exempts a clergy member from testifying if the clergy received a "confession" (as a confidential communication); but expressly maintains the duty to report under §13-3620(A) – rendering it essentially superfluous to this case.

4. The Opinion asserts that the "Clergy Exemption" is broader than the Clergy-penitent privilege because it includes confidential communication, as well as, confessions; but the term "confession" has included broader communications for years in Arizona and throughout the U.S. *State v. Archibeque*, 223 Ariz. 231 (App 2009). The emphasized element of "confidential" in §13-3620 arguably renders it more limited in scope than the privilege statutes (A.R.S. §12-2233 and §13-4062).

5. The statute, §13-3620(A), does not grant authority to the Church to decide if a communication is confidential. The Opinion had to somehow alter the meaning of the statute to arrive at the apparent desired result. This Court used the First Amendment to "compel" the

meaning of the statute in opposition to legislative intent. The First Amendment does not compel such activism.

6. A.R.S. §13-3620(A) actually provides that a "member of the clergy … who has received a confidential communication or a confession in that person's role as a member of the clergy, as a Christian Science practitioner or as a priest in the course of the discipline enjoined by the church to which the member of the clergy … belongs may withhold reporting of the communication or confession if the member of the clergy … determines that it is reasonable and necessary within the concepts of the religion." The first element requires an objective, secular determination of confidentiality. The Church can decide what constitutes a confession; but it cannot decide that communications are "confidential" when they are not confidential – the key issue in the case.

There is no other known case in the United States that has found that a neutral child abuse reporting statute violates the First Amendment unless the statute is purposefully construed to eviscerate the requirement that clergy report communications of abuse that were not "confidential." The "exemption" and the "privilege" contain the same elements and are essentially identical, despite the Opinion's efforts to differentiate them. They are mirror images.

The Court's Opinion in this case virtually eliminates mandatory reporting for clergy, reaching far beyond modern concessions by religious organizations. The Arizona mandatory reporting statute preserves the clergy penitent privilege; but it does not expand its breadth with a wider "exemption" in §13-3620(A).

Plaintiffs do not dispute that the State has a significant interest in preventing child abuse. . . nor do Plaintiffs dispute that members of the clergy can be designated mandatory reporters in most contexts in a manner consistent with the first Amendment.

Etienne v. Ferguson, 791 F. Supp. 3d 1226, 1227 (W.D. Wash 2025). The Catholic Church also conceded that if clergy learned about abuse during counseling, even from the penitent, then "the priest is obligated to report the suspected abuse or neglect to proper law enforcement agencies. . .". *Etienne* at 1247. No longer in Arizona. Virtually nothing need be nor will be reported.

7. Neutral child abuse reporting statutes nearly identical or similar to the Arizona statute exist throughout the U.S. This Court apparently asserts that a neutral reporting statute cannot require "clergy" members (an expansive term) to report known abuse even if they learned of the abuse in communications that real "factfinders" would find not confidential.

C. First Amendment Does Not Authorize Powerful Religious Organizations to Conceal Child abuse that was Never Privileged (nor Exempt from Reporting – the same thing).

If the clergy held the privilege (i.e. exemption) under A.R.S. §13-3620(A or N), a court must decide confidentiality using the traditional, objective standard focusing on the circumstances of the communication. The Church should not decide the parameters of a state statute using its own doctrines to supplant statutory elements.

For example, in New Jersey, "both the cleric and penitent hold the privilege and … neither alone may waive it." *State v. J.G.*, 990 A.2d at 1122, 1129 (N.J. 2010). Courts analyze whether a communication is confidential – thus whether the privilege applies in the first place – by inquiring: "[w]ould an objectively reasonable penitent, under the totality of the circumstances, believe that a communication was secret, that is, made in confidence to a cleric in that cleric's professional character or role as spiritual advisor?" *Id.* at 1131.

The Arizona Statute (A.R.S. § 13-3620(A)) is "proper." It does not violate the free exercise clause nor the establishment clause of the First Amendment:

> Under *Employment Division, Department of Human Resources v. Smith* [494 U.S. 872 1990], the Supreme Court explained that the Free Exercise clause prohibits the government from (1) regulating one's "right to believe and profess" one's

> religious convictions, or (2) specifically targeting and regulating one's right to engage in religious activity… Conversely, "generally applicable, religion-neutral laws that have the effect of burdening a particular religious practice" do not violate the Free Exercise Clause…
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> An overly broad privilege or accommodation, protecting religious communications generally, would run afoul of the Establishment Clause's mandate that the religions not be elevated to a preferred position over the secular.

Colombo, *Forgive Us Our Sins: The Inadequacies of the Clergy-Penitent Privilege*, Vol. 73 N.Y. Univ. L. Rev. 225, 235-37, 242, 246 (N.Y.U. L. R. 1998).

The Court's misapplication of constitutional law to mandate "substantial deference" and "ecclesiastical abstention" to displace judicial interpretation of a neutral state statute turns legislated public policy on its head. Petitioners respectfully submit that the Court's application of the First Amendment requires correction to align with binding United States Supreme Court precedent and to prevent the evisceration of mandatory reporting statutes designed to protect minors. Extending ecclesiastical abstention to a secular, third-party tort claim (negligence for failure to report abuse) misapplies constitutional limits.

The present matter does not involve an intra-church dispute over faith or ecclesiastical governance; it involves a purely secular dispute regarding a church's compliance with a generally applicable child safety statute intended to protect third-party minors. By expanding ecclesiastical abstention to grant absolute immunity against a secular negligence claim, the Court erroneously shielded the Church from its legal obligations to the public.

The First Amendment forbids civil courts from resolving disputes that turn on the interpretation of religious tenets. *Presbyterian Church v. Mary Elizabeth Blue Hull Memorial Presbyterian Church*, 393 U.S. 440, 449 (1969). Specifically, "the First Amendment prohibits a

State from employing religious organizations as an arm of the civil judiciary to perform the function of interpreting and applying state standards." *Id.* at 451.

If this decision stands, the practical consequences for public safety and the rule of law are dire. The Court has essentially established an absolute immunity for religious institutions that fail to report child sexual abuse, insulating them from civil liability and judicial oversight even when an abuser reveals his crimes in the presence of multiple people over a period of years that were never confidential.

Furthermore, the Court's reliance on ecclesiastical abstention to bar a civil negligence claim misapplies the doctrine. The United States Supreme Court has established that constitutional limitations on civil court intervention in church matters are confined strictly to intra-church disputes. *Gen. Council on Fin. & Admin., United Methodist Church v. California Superior Court*, 439 U.S. 1369, 1373 (1978). The doctrine prevents the state from becoming entangled in "essentially religious controversies"; it does not apply to purely secular disputes brought by third parties involving allegations of fraud, breach of contract, or statutory violations. *Id.* As Justice Rehnquist noted, religious organizations cannot use the "cloak of religion" to commit public wrongs with impunity or avoid secular legal obligations. *Id.* Failing to report ongoing child sexual abuse in violation of a mandatory statute is a purely secular dispute affecting third-party victims, not an internal dispute over church governance.

A mandatory reporting law is a neutral law of general applicability designed to protect children. The right of free exercise does not relieve an individual of the obligation to comply with a valid and neutral law of general applicability. *Emp. Div., Dep't of Human Res. of Oregon v. Smith*, 494 U.S. 872, 879 (1990).

By interpreting the statutory exemption as granting the Church unreviewable discretion to determine whether withholding a report is "reasonable and necessary," the Court has created a system of individualized exemptions. Under *Fulton v. City of Philadelphia*, a law is not generally applicable if it "invite[s]" the government to consider the particular reasons for a person's conduct by providing "a mechanism for individualized exemptions." 141 S.Ct. 1868, 1877 (2021).

D. Public Policy

The Opinion somehow asserts that the issues in the case turn on interpretation of §13-3620, rather than based on public policy. Opinion at ¶ 1. Yet §13-3620 represents purposeful legislative enactment of public policy. Any modification to the meaning of the statute changes public policy. The legislative policy to require reporting of known or reasonably suspected child abuse is contrary to the judicially created policy of licensing religious organizations to conceal abuse. The policy of delegating the authority to religious clergy, liberally interpreted in this case to include 35 people, to determine elements of a secular statute is vastly different from what the Arizona legislature passed into law. The judicial public policy of delegating power to religious organizations is contrary to the normative policy of strictly constraining privileges (and exemptions). Finally, A.R.S. §13-3620(N) does nothing to grant any exemption or privilege to clergy outside of a testimonial one.

CONCLUSION

The result of this opinion will unquestionably permit ongoing child rape to go unreported and unchecked, as it did here all under the guise of religious freedom. The first victim in this case was only 5 years old when her father told the bishop (also the family doctor) that he had sexually molested his preschool daughter and videotaped it. The bishop (and his successor who

also know of the child rape) saw the victim in church every Sunday for the next seven years and did nothing to help her nor her siblings who were also raped by their father. The horrific sexual acts on these infants continued until the victim was 12 years old, when a gruesome 9-minute video of the horrific abuse came to the attention of law enforcement in New Zealand. Adams had been posting videos and photos on the internet of his sexual abuse. As of 2022, NCMEC (National Center for Missing and Exploited Children) had documented over 9,000 different files in the Sparkling Velvet Series. When Paul Adams was finally arrested, the police report document thousands of such photos and videos confiscated from his home. The net result of this decision is that Arizona will attract religions and criminals that wish to conceal sexual abuse under the guise of religious freedom. The soul of our society is revealed in the manner that we protect our children.

In effect, the Opinion alters A.R.S. §13-3620(A) to parallel the statute in Montana. See *Nunez v. Watchtower*, 455 P.3d 829 (Mont 2020). The Arizona legislature should be shocked to know that its statute is now the equivalent of the result reached in *Nunez*. The Montana statute expressly provided that a "member of the clergy or a priest is not required to make a report … if the communication is required to be confidential by cannon law, church doctrine or established church practice." Mt. St. 41-3-210(6)(c). The Arizona statute says no such thing. As a result, sex abuse in *Nunez* (as here) continued unabated for years and extended to several victims. No one in the church reported the abuse. In Montana, the legislature created the save haven for pedophiles. In Arizona, our Supreme Court created the same result in spite of contrary legislative intent – supposedly compelled by the First Amendment.

In 1998, Holly reported sex abuse, fondling and touching by Maximo to three Church elders. They did nothing. Holly, a child, returned home and was raped for years until she was old

enough to leave home. In 2004, a second child, Peter, reported abuse against Maximo. An attorney advised Church leaders that Montana law did not require reporting; so of course, no reporting occurred. Instead, Maximo was "disfellowshipped," but reinstated a year later in June, 2005.

Maximo also started abusing a third child, Alexis in 2002, on a weekly basis from age 5 to age 10. Once again, the abuse was reported to Church elders. Maximo reportedly faced another "disfellowship" and reinstatement. All three victims filed a lawsuit; but the case, like here, was dismissed based on the Montana statute that expressly authorizes the failure to report. Now, the Opinion in this Court authorizes the same result despite disparate statutes.

The net effect of the decision in this case will be that minors, like the Doe plaintiffs and the children in *Nunez*, whose lives are embedded in religious organizations, will suffer horrific child abuse. The children and others in the Church can complain to elders, leaders, and "clergy"; but to no avail. The incentive and delegated authority given to the Church will silence their cries for help and their abuse will be concealed. Child sex abuse within powerful religious organizations in the U.S.A. has been rampant. The Arizona legislature tried to encourage reporting. The Opinion in this case creates public policy to conceal abuse.

RESPECTFULLY SUBMITTED this 12th day of August, 2026

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